

Smt. Manorma Jaiswal v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 31 May 2022 · Writ-C No. 9689 of 2022 · **Writ disposed; liberty to file a Para 6.8 objection; coercive action stayed.**

HEADNOTE

Writ seeking certiorari against a recovery certificate for Rs. 47,214 disposed of without any opinion on merits. The petitioner was given liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if filed in time, the objection is to be decided within the next four weeks after a hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Smt. Manorma Jaiswal approached the Allahabad High Court to quash a recovery certificate dated 14 February 2022 issued by respondent no. 3 for Rs. 47,214. The State and the power distribution corporation were impleaded as respondents. On instructions, counsel for the corporation told the Court that the petitioner could file an objection to the demand and that it would be decided in accordance with law within a fixed time. The petition was pressed on the certificate and that statement alone.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Para 6.8 objection against a recovery demand

HOLDING

A writ seeking certiorari against a recovery certificate is disposed of, without any opinion on merits, by giving the consumer liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, together with a certified copy of the order. If the objection is filed within that period, the licensee shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. No coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ against the recovery certificate was disposed of without examining the demand, with liberty to the petitioner to file an objection under Para 6.8 before the licensee. ¶ 4

fresh-objection-under-clause-6.8 No objection was already pending. The Court allowed four weeks to submit an objection under Para 6.8, directed a decision within the following four weeks after hearing, and stayed coercive action for eight weeks or until that disposal. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 14 FEBRUARY 2022 FOR RS. 47,214 WAS LIABLE TO BE QUASHED

The Court disposed of the writ without expressing any opinion on the merits of the demand. ¶ 4